
TIBA YA HOME

PRIVACY POLICY

Effective date: 10 August 2026 • Please read this Policy carefully

PLATFORM OPERATOR

Tiba Ya Home is a healthcare technology and service-coordination platform operated by Jack Reacher Medical Ltd. References to Tiba Ya Home, the Platform, we, us or our refer to Tiba Ya Home and, where applicable, Jack Reacher Medical Ltd., as the entity operating and administering the Platform and processing the personal data described in this Policy.

This Privacy Policy explains what personal data Tiba Ya Home collects when you use the Tiba Ya Home website, mobile application, and in-app telemedicine feature (together, the "Platform"), why we collect it, how it is used, shared, and protected, and the choices and rights available to you. This Policy should be read together with our Terms of Service, Platform Use Agreement, Telemedicine Terms and Client Consent.

By creating an account, browsing the Platform, or using any Service or Telemedicine Consultation, you acknowledge that you have read and understood this Privacy Policy and consent to the collection, use and disclosure of your personal data as described here, including sharing of relevant information with the independent Service Provider assigned to your Booking or Telemedicine Consultation.

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1. Acceptance & Scope

By creating an account, browsing the Platform, or using any Service or Telemedicine Consultation, you acknowledge that you have read, understood, and agree to this Privacy Policy. If you do not agree, you should not use the Platform.

This Policy applies to personal data collected through the Tiba Ya Home website, mobile application, in-app telemedicine feature, and any related customer-support channel (call centre, WhatsApp, email).

2. Definitions

- **"Platform"** means the Tiba Ya Home website, mobile application (including its telemedicine feature), and any associated booking, payment or communication channel operated by Tiba Ya Home.
 - **"Personal Data"** means any information relating to an identified or identifiable natural person, as defined under the Kenya Data Protection Act, 2019.
 - **"Sensitive Personal Data"** means personal data revealing health status, medical history, genetic or biometric data, and other categories designated as sensitive under the Kenya Data Protection Act, 2019.
 - **"Service Provider"** means an independent hospital, clinic, medical centre, healthcare organisation, doctor, nurse, clinical officer, therapist, sonographer, laboratory professional, caregiver, or other qualified professional or entity that has entered into a commercial/participation arrangement with Tiba Ya Home, has been onboarded or verified to the extent stated on the Platform, and is not an employee of Tiba Ya Home.
 - **"Telemedicine Service"** means a remote consultation, clinical assessment, follow-up, advice or other healthcare interaction conducted through the Platform using video, audio, chat, telephone or other supported electronic communication technology and delivered by an independent Service Provider.
 - **"Verification"** means the onboarding checks Tiba Ya Home elects to perform on a Service Provider, which may include review of identity, professional registration/licensing, qualifications and other documents. Verification is not a guarantee of a Service Provider's future competence, conduct, or data-handling practices.
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3. Who We Are — Platform Operator

Tiba Ya Home is operated by Jack Reacher Medical Ltd. ("we", "us", "our"), which acts as the data controller for personal data collected through the Platform for account, booking, payment, and platform-operation purposes, under the Kenya Data Protection Act, 2019.

Independent Service Providers who receive your data in order to deliver a Service or Telemedicine Consultation act as independent controllers (or, in some cases, processors) of the health and personal data they subsequently hold about you. See Section 11 for how responsibility is divided between Tiba Ya Home and Service Providers.

4. Information We Collect

Category	Examples
Account & identity data	Full name, phone number, email address, date of birth, gender, national ID number (where required for certain services), profile photo (optional).
Location data	Home/visit address you enter for a booking; with your permission, precise device location (GPS) to help route a Service Provider to you.
Health & medical data	Symptoms, diagnoses, medical history, allergies, medication, and treatment notes recorded by a Service Provider during or after a visit or Telemedicine Consultation.
Telemedicine & consultation data	Session metadata, consultation recordings (only where separately consented — see Section 8), chat transcripts, and clinical notes generated by the Service Provider.
Booking & usage data	Services booked, appointment times, service history, ratings/reviews, messages with Service Providers or support, app interaction and crash/diagnostic data.
Payment data	Mobile money (e.g. M-Pesa) transaction references, card payment tokens processed by our payment gateway, billing address. We do not store full card

	numbers on our own servers.
Device & technical data	Device model, operating system, unique device/advertising identifiers, IP address, app version, push-notification token.
Third-party/dependent data	Where you book on behalf of another person, the Patient's name, age, and relevant health information, which you confirm you are authorised to provide.

5. How We Collect Information

- Directly from you — when you register, complete a Booking, use the telemedicine feature, contact support, or submit a review.
- From a Service Provider — clinical notes, visit or consultation summaries, or condition updates recorded after a visit or Telemedicine Consultation.
- Automatically — through the app and website using analytics, crash-reporting, and (for telemedicine sessions) connection-quality diagnostics.
- From third parties — payment confirmation from mobile-money or card processors; identity or licence verification information from relevant professional or regulatory bodies (for Service Providers, not Clients).

6. Legal Basis for Processing

Under the Kenya Data Protection Act, 2019, we process your personal data on the following bases:

- Consent — for sensitive/health data, Telemedicine Consultation recordings, marketing communications, and precise location access, which you may withdraw at any time (see Section 17).
- Performance of a contract — to create your account, process a Booking or Telemedicine Consultation, and enable a Service Provider to deliver the Service you requested.
- Legal obligation — for example, retaining transaction records for tax and financial-reporting purposes.
- Legitimate interests — to keep the Platform secure, prevent fraud, and improve our services, balanced against your rights and interests.

7. How We Use Your Information

- Create and manage your account and authenticate you when you log in.
 - Process, confirm, and dispatch Bookings to an appropriate, available Service Provider.
 - Facilitate and technically support Telemedicine Consultations, including connecting you with a Service Provider and maintaining session logs for security and quality purposes.
 - Process payments, invoicing, refunds, and manage membership/subscription billing.
 - Communicate with you about bookings, appointment reminders, service updates, and support requests.
 - Maintain a booking and service history for continuity of care across visits and consultations.
 - Monitor, investigate and respond to complaints or safety concerns raised about a Service Provider or Client.
 - Detect, prevent and investigate fraud, abuse, or breaches of our Terms of Service.
 - Improve the Platform, carry out analytics, and (only with your consent) send you marketing communications.
 - Comply with applicable legal, tax, and regulatory obligations in Kenya.
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8. Telemedicine & Online Consultation Data

Where you use the Platform's telemedicine feature, we process additional categories of data specific to that consultation:

- Session metadata — date, time, duration, participants, and connection-quality diagnostics;
- Where you and the Service Provider both separately consent at the start of a session, an audio/video recording or transcript of the consultation, retained for clinical record, quality, security, legal and regulatory purposes;
- Chat messages exchanged during or around a Telemedicine Consultation;
- Any clinical notes, assessment, prescription, or referral generated by the Service Provider following the consultation.

The Service Provider conducting a Telemedicine Consultation is independently responsible for the clinical record arising from that consultation and for complying with applicable professional confidentiality, record-keeping, and data-protection obligations in relation to it, in the same way as for an in-person visit — see Section 11.

Tiba Ya Home does not guarantee uninterrupted connectivity or perfect audio/video quality during a Telemedicine Consultation, and technical logs may be retained to diagnose and resolve connectivity issues.

9. Sensitive / Health Data — Special Care

Health information is treated as Sensitive Personal Data under Kenyan law and is handled with additional safeguards:

- Health data is shared with a Service Provider only to the extent necessary to deliver the specific Service or Telemedicine Consultation you booked.

- Access to health records within our systems is restricted to authorised personnel and the assigned Service Provider(s) for your Booking.
 - We do not sell health data, and we do not use health data for third-party advertising or profiling.
 - Service Providers, as independent professionals or entities, are separately bound by their own professional confidentiality obligations (e.g. doctor–patient or nurse–patient confidentiality) regarding information gathered during a visit or Telemedicine Consultation — see Section 11.
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10. Who We Share Information With

- Service Providers assigned to your Booking or Telemedicine Consultation — including hospitals, clinics, medical centres, and freelance verified professionals — receive the booking/consultation details and relevant health information necessary to deliver the Service.
- Payment processors and mobile-money providers (e.g. M-Pesa/Safaricom, card payment gateways) — to process transactions.
- Cloud hosting, infrastructure, and telemedicine/video-communication technology providers — who enable the Platform and its telemedicine feature, under contractual confidentiality and security obligations.
- Analytics, crash-reporting and push-notification providers — limited to technical/device data, as listed in Section 12.
- Regulators, law enforcement, or courts — where required by Kenyan law, court order, or to protect the safety of any person.
- Professional or business advisers (lawyers, auditors) — under confidentiality obligations, where necessary.
- A successor entity — in the event of a merger, acquisition, or sale of assets, subject to equivalent privacy protections.

We do not sell your personal data to third parties for their own marketing purposes.

11. Service Provider Data Responsibilities

Each Service Provider — whether an institutional provider (hospital, clinic, medical centre) or a freelance professional — is independently responsible, as a matter of its own professional and legal obligations, for how it subsequently collects, stores, uses, and protects any personal or health data it obtains about you or the Patient in the course of delivering a Service or Telemedicine Consultation, including compliance with its own confidentiality, record-keeping, and data-protection obligations under Kenyan law.

Verification of a Service Provider by Tiba Ya Home relates to onboarding checks only (see Section 2) and is not a guarantee, warranty, or certification of that Service Provider's ongoing data-handling or confidentiality practices.

Any concern about a specific Service Provider's handling of your data should be raised with that Service Provider directly, and may also be reported to Tiba Ya Home via Section 24 (Contact) for review under our complaints process.

12. Third-Party SDKs & Services Used in the App

The Tiba Ya Home app may use the following categories of third-party services, each of which processes limited data under its own privacy policy:

Purpose	Example provider	Data typically involved
App infrastructure / push notifications	Firebase / Google Cloud	Device ID, push token, crash logs
Analytics	Google Analytics / Mixpanel	App usage events, device/OS info
Payments	M-Pesa Daraja API / card gateway	Transaction reference, amount, phone number
Maps & location	Google Maps Platform	Address, GPS coordinates
Telemedicine / video calling	Video-SDK provider (e.g. Agora / Twilio / Daily.co)	Audio/video stream, session metadata, connection diagnostics
Customer support	WhatsApp Business API / helpdesk tool	Name, phone number, message content

13. App Permissions

Permission	Why we ask
Location (fine/coarse)	To pre-fill your visit address and route the Service Provider to you.
Camera / Microphone	To let you join a video or audio Telemedicine Consultation, and to upload a profile photo or a photo relevant to a booking (e.g. a wound photo), only where you choose to.
Notifications	To send booking confirmations, Service Provider arrival alerts, and appointment/consultation reminders.
Phone / Call	To let you call your assigned Service Provider or our support line directly from the app (optional).
Storage	To save downloaded receipts, reports, or documents shared with you.

We request only the permissions necessary for the features you use, in line with Google Play's permitted-use policies.

14. International Data Transfers

Your data is primarily hosted and processed within data centres that may be located outside Kenya (for example, where our cloud hosting, telemedicine, or SDK providers operate regional or global infrastructure). Where personal data is transferred outside Kenya, we take steps required under the Data Protection Act, 2019, to ensure an adequate level of protection, including contractual safeguards with our service providers.

15. Data Retention

We retain personal data for as long as your account is active and as necessary to provide the Platform, plus a reasonable period afterward to comply with legal, tax, medical-record, or dispute-resolution obligations. Health-related records and, where consented, Telemedicine Consultation recordings may be retained for longer periods where required by applicable healthcare record-keeping regulations, or deleted sooner where not retained as part of a clinical record. When data is no longer required, we securely delete or anonymise it.

16. Data Security

We apply technical and organisational measures designed to protect your personal data, including encryption of data in transit (including telemedicine sessions), access controls limiting who can view sensitive data, and regular review of our systems. No method of transmission or storage is completely secure, and we cannot guarantee absolute security; you should also take steps to protect your own account (e.g. not sharing your password or OTP codes, and using the telemedicine feature from a private, secure connection).

17. Your Rights

Under the Kenya Data Protection Act, 2019, you have the right to:

- Be informed of how your personal data is used (as set out in this Policy);
- Access the personal data we hold about you;
- Request correction of inaccurate or outdated personal data;
- Request deletion of your personal data, subject to any legal or contractual retention requirements;
- Object to, or restrict, certain processing of your personal data, including direct marketing;
- Withdraw consent at any time where processing is based on consent (for example, marketing communications, precise location access, or a Telemedicine Consultation recording), without affecting processing carried out before withdrawal;
- Data portability, i.e. request your data in a structured, commonly used format, where technically feasible;
- Lodge a complaint with the Office of the Data Protection Commissioner (ODPC), Kenya, if you believe your data protection rights have been violated.

To exercise any of these rights, contact us using the details in Section 24. We may need to verify your identity before actioning a request.

18. Children's Privacy

The Platform is not directed at children, and we do not knowingly collect personal data directly from children under 18 without the involvement of a parent or legal guardian. Where a Booking or Telemedicine Consultation is made on behalf of a minor Patient, that information is provided and controlled by the parent or guardian's account. If we become aware that a child has created an account independently and provided personal data without appropriate parental consent, we will take steps to delete that data.

19. Cookies & Similar Technologies

Our website may use cookies and similar technologies to keep you logged in, remember preferences, and understand site usage through analytics. You can control cookies through your browser settings; disabling certain cookies may affect site functionality.

20. Marketing Communications

With your consent, we may send you promotional messages about new services, offers, or membership plans via SMS, WhatsApp, push notification, or email. You can opt out at any time via the unsubscribe link, by replying "STOP", or through your in-app notification settings, without affecting transactional messages related to your bookings or consultations.

21. Data Breach Notification

In the event of a personal data breach that is likely to result in a risk to your rights and freedoms, we will notify the Office of the Data Protection Commissioner and affected users without undue delay, in accordance with the Data Protection Act, 2019.

22. Changes to This Policy

We may update this Privacy Policy from time to time to reflect changes in our practices, technology, legal requirements, or the Platform's features. We will post the updated Policy on this page with a revised effective date, and where changes are material, we will provide additional notice (e.g. in-app notification) before they take effect.

23. General Provisions

Severability: If any provision of this Policy is held invalid or unenforceable, the remaining provisions continue in full force and effect.

Entire Agreement: This Policy, together with our Terms of Service, Platform Use Agreement, Telemedicine Terms and Client Consent, constitutes the entire agreement between you and Tiba Ya Home regarding the processing of your personal data.

No Waiver: Our failure to enforce any provision of this Policy does not constitute a waiver of that provision.

Contact Us & Data Protection Officer

If you have questions, concerns, or requests regarding this Privacy Policy or your personal data, please contact:

Tiba Ya Home • Operated by Jack Reacher Medical Ltd.

Data Protection Officer: Cyrus Mundenyu

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